

**DEPARTMENT THREE
JUDGE STEPHEN GIZZI
707-207-7303
TENTATIVE RULINGS SCHEDULED FOR
FRIDAY, JUNE 5, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**IVER CAPITAL CORPORATION v. MADRIGAL
Case No. cl25-11788**

Motion by Plaintiff for Judgment on the Pleadings

TENTATIVE RULING

Defendant's answer admitted all allegations of the complaint. But it also added a claim that Defendant is being sent payment requests from the DMV, and that he did not receive notice that the car after repossession had been sold.

It therefore appears possible that the balance claimed owed at time of charge-off should be reduced to the extent Defendant might be faced with DMV fees, if Premier failed to ensure that the DMV was notified of the sale of the car after repossession (and also failed to notify Defendant of the sale, so that Defendant had an opportunity to notify DMV that he was no longer owner of record).

There is a second concern.

Plaintiff's complaint does not allege any facts regarding the sale after repossession. There are no allegations as to what the vehicle sold for; to whom it was sold; or the manner of sale.

Commercial Code §9607(c) authorizes a secured creditor to "proceed in a commercially reasonable manner" to sell the goods securing the loan.

Commercial Code §9607(d) authorizes a secured party to “deduct from the collections made pursuant to subsection (c) reasonable expenses of collection and enforcement, including reasonable attorney’s fees and expenses incurred by the secured party”. This would presumably include the costs of repossession, and those incurred to sell the vehicle in a commercially reasonable manner.

Section 9 of the Uniform Commercial Code Comment explains that a seller’s failure to observe the standard of “commercial reasonableness” “could render it liable to an aggrieved person under Section 9-625, and the secured party’s recovery of a deficiency would be subject to 9-626” (limiting liability of debtor to the difference between the value of the property less what would have been realized had the sale been conducted in a commercially reasonable manner; see California Practice Guide, Enforcing Judgments and Debts (The Rutter Group 2025), §3:6.10, p. 3).

Commercial Code §9610(a) authorizes disposition of collateral “in its present condition or following any commercially reasonable preparation or processing”. Subsection (b) requires “[e]very aspect of a disposition of collateral, including the method, manner, time, place, and other terms,” to “be commercially reasonable”.

Even in a default situation on a deficiency judgment action, default judgment cannot be entered by a clerk, but must instead be made by the court, as it requires a determination that the sale was conducted in a “commercially reasonable manner.” Liberty Loan Corp. of North Park v. Petersen (1972) 24 Cal.App.3d 915, 919.

Granting a motion for judgment on the pleadings is the functional equivalent of a default. While the allegations of the complaint are found not to be contested by the defendant in both default and judgment on the pleadings situations, the court still has a duty to evaluate the post-repossession sale, and the terms of judgment will thus depend upon whether the court finds the sale to have been conducted in a commercially reasonable manner.

The court cannot conduct this evaluation without detailed information about the sale after repossession.

Finally, this motion sought an amount of judgment inclusive of attorneys fees, costs, and prejudgment interest.

Attorneys fees, if any are authorized by contract or statute, are claimable only by post-judgment motion. CRC 3.1702.

Court costs are claimable only by post-judgment filing and service of a memorandum of costs. CRC 3.1700.

While prejudgment interest can be included in a judgment, there is a discrepancy between the complaint and the motion as to the date from which post-charge-off interest

is being claimed. The complaint contained allegations for post-charge-off interest from the specified date of “11/30/2023” [¶¶16, 17].

The motion claimed pre-judgment interest at 10% per annum “from 07/02/2023 to present”.

For each of these reasons, this motion is denied, without prejudice to Plaintiff filing a motion in which evidence is provided and can be considered by the court in determining whether a judgment can be issued, and if so, in what specific amount.

WALLACE v. MEDIC AMBULANCE SERV., INC., ET AL.
Case No. CU24-05970

Motion for Judgment on the Pleadings

TENTATIVE RULING

Defendant’s motion for judgment on the pleadings is granted with leave to amend.

Statutory causes of action must be pleaded with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790; *Lopez v. S. Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 795.) “[T]he plaintiff must set forth facts in his complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied.” (*Mittenhuber v. City of Redondo Beach* (1979) 142 Cal.App.3d 1, 5.) Although less specificity may be warranted when a defendant has superior knowledge of the facts, the pleading must still provide sufficient notice of the issues to enable the defendant to prepare a defense. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550.)

Plaintiff has not pleaded facts sufficient to provide Defendant notice of the issues it will have to defend. Plaintiff concludes that Defendant required Plaintiff and other employees to “work” during meal and rest periods, but does not articulate what duties were required to be performed or the circumstances surrounding the interruption of any meal or rest periods. (FAC, ¶¶ 52, 61.) Plaintiff concludes that Defendant failed to pay minimum wages, but does not articulate how the wages paid fell below minimum wages. (FAC, ¶ 67.) Plaintiff concludes that earned wages were not paid within 72 hours of termination of employment, but does not specify what wages were not paid. (FAC, ¶ 72.) Plaintiff concludes that Defendant failed to provide complete and accurate wage statements that did not provide the total number of hours worked, but does not allege how this missing information caused injury. (FAC, ¶¶ 79-80.) Plaintiff concludes that Defendant did not reimburse employees for all necessary expenditures incurred by employees, but does not identify the nature of any expenses incurred by any employee or the circumstances under which the expenses were incurred. (FAC, ¶ 85.) Having failed to plead the underlying Labor Code violations with adequate specificity, Plaintiff’s derivative claims for PAGA penalties and for violation of the UCL also fail.

The court notes that because Plaintiff is an “emergency ambulance employee”, Plaintiff is required by law to “remain reachable by a portable communications device throughout the entirety of each work shift.” (Lab. Code § 887(a).) Consequently, any claim that Plaintiff was required to work during her meal and rest periods because she was on call would be without merit. This requirement does not supersede, or exempt emergency ambulance employees from, Labor Code section 226.7. (See, Lab. Code § 885(a) [“All emergency ambulance employees are hereby entitled to meal and rest periods as prescribed elsewhere”].) Instead, if an employee is contacted during their meal or rest period, that particular meal or rest period interrupted by the contact would not count toward the meal or rest period the employee is entitled to during the work shift. (Lab. Code § 887(b).)

Plaintiff shall file and serve any second amended complaint within ten days of the date of the hearing.

CITY OF BENICIA v. CHARLA A. WIMMER
Case No. CU26-04334

Petition for Order to Abate Substandard Building and Appoint Receiver

TENTATIVE RULING

Petitioner CITY OF BENICIA’s petition seeking an order declaring the property at 75 Buena Vista, Benicia, California 94510 substandard and appointing a receiver to abate the nuisance is denied without prejudice.

Health and Safety Code section 17980.7 permits a city to petition for a court order for appointment of a receiver for a substandard building subsequent to posting of notice of an order to repair or abate substandard conditions. Notice of this petition must be posted in a prominent place on the affected property and mailed to each person with a recorded interest in the property no later than three court days before the hearing on the petition. The petition must be served on the property owner according to Code of Civil Procedure section 415.10, *et seq.*; the owner has ten days to respond. The court must be satisfied that the owner has been afforded a reasonable opportunity to correct the nuisance conditions and the proposed receiver has the ability to satisfactorily rehabilitate the building before granting the petition. Thirty days affords statutorily accepted “reasonable opportunity.” (Health & Saf. Code, § 17980, subd. (a).)

Petitioner states only that it posted notice of intent to file the instant petition, not the petition itself, on the subject property at least three days prior to filing the petition. Petitioner provides no proof of service indicating that notice of this petition was mailed to all persons with recorded interests in the subject property. The court is accordingly not satisfied that the owner has been afforded a reasonable opportunity to correct nuisance conditions. Petitioner also has not filed a memorandum in support of the petition identifying details of the proposed receivership such as the identity of the

receiver, which is necessary to assess the receiver's ability to satisfactorily rehabilitate the subject property.

CITY OF BENICIA v. STEPHEN CLIFFORD BLACK and CHERYL ANN BLACK as Trustees of THE STEVEN BLACK AND CHERYL ANN BLACK REVOCABLE LIVING TRUST et al.
Case No. CU26-04398

Petition for Order to Abate Substandard Building and Appoint Receiver

TENTATIVE RULING

Petitioner CITY OF BENICIA's petition seeking an order declaring the property at 1030 West Sixth Street, Benicia, California 94510 substandard and appointing a receiver to abate the nuisance is denied without prejudice.

Health and Safety Code section 17980.7 permits a city to petition for a court order for appointment of a receiver for a substandard building subsequent to posting of notice of an order to repair or abate substandard conditions. Notice of this petition must be posted in a prominent place on the affected property and mailed to each person with a recorded interest in the property no later than three court days before the hearing on the petition. The petition must be served on the property owner according to Code of Civil Procedure section 415.10, *et seq.*; the owner has ten days to respond. The court must be satisfied that the owner has been afforded a reasonable opportunity to correct the nuisance conditions and the proposed receiver has the ability to satisfactorily rehabilitate the building before granting the petition. Thirty days affords statutorily accepted "reasonable opportunity." (Health & Saf. Code, § 17980, subd. (a).)

Petitioner states only that it posted notice of intent to file the instant petition, not the petition itself, on the subject property at least three days prior to filing the petition. Petitioner provides no proof of service indicating that notice of this petition was mailed to all persons with recorded interests in the subject property. The court is accordingly not satisfied that the owner has been afforded a reasonable opportunity to correct nuisance conditions. Petitioner also has not filed a memorandum in support of the petition identifying details of the proposed receivership such as the identity of the receiver, which is necessary to assess the receiver's ability to satisfactorily rehabilitate the subject property.

Join ZoomGov Meeting

<https://www.zoomgov.com/j/1602210102?pwd=emlhR29SczExam56NFFqWHFvSitmZz09>

Meeting ID: 160 221 0102

Passcode: 650928

One tap mobile

+16692545252,,1602210102#,,, *650928# US (San Jose)

+16692161590,,1602210102#,,, *650928# US (San Jose)